

OREGON CITY ENTERPRISE

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Road Action Forced

(Continued from page one.)

has not sufficient funds to finance the laying of the grade, which under the state regulations would be necessary. The commission would only be able to lay the pavement.

The entire plan and estimates are at present in the hands of the state commission and the estimates are being revised to check with the current prices for labor and material. It is understood that under present conditions the work can be done for approximately twenty per cent less than the original cost.

Letters similar to that sent to Judge Cross, have been sent to the Live Wires, the local Road committee and the city, and what action will be taken is not yet intimated. It is probable that the commission will refuse to improve the 3,000 foot gap in the highway on the west side until assurance of immediate action on the south end road is received, in order to secure the united support of the entire district in the matter of financing the out here. The south end road is entirely within the city limits, extending to Canemah where the pavement is already constructed. It crosses a network of P. R. L. and P. Southern Pacific, and private right of way tracks on the present basin route and local interests are practically unanimous in the desire to bring the improvement over the hill, which would add to the scenic value as the Canemah bluff tops the Willamette River falls.

PAY HELD UP

(Continued from page one.)

I have no strife or ill feeling toward Sheriff Wilson whatever.

For some months I have refused to sign the bill of Deputy Hughes and now Long comes along and his bill is not signed for the same reason given in the Hughes case. The law governing the payment of deputy sheriffs is very simple:

Chapter 174, Session Laws 1921, provides, among other things:
"Sec. 3596. The following named county officials of Clackamas county shall receive as compensation for their services, the following annual salaries:

1. County Judge \$1600.00.
2. County Commissioners \$5.00 per day, etc.
3. County Treasurer \$1500.00.
4. County Clerk \$1800.00.
5. Recorder of Conveyances \$1500.
6. Sheriff \$2100.00.
7. Assessor \$1500.00.
8. School Superintendent \$1700.00.

Under subdivision 11 of said Section, it is provided:
"11. 'The County Court of Clackamas county shall provide for any of the above named officers or officials of such deputies and clerks and shall fix the salaries or compensation for such services of the same as the County Court shall deem advisable; provided, that the deputies or clerical help so provided for shall be named by the officer for whom they are provided, or by the officer in charge of the office for whom they are provided.'"

This law, as to deputy hire, seems very plain, and applies to each of the offices named.

Each officer shall name his deputy or deputies and the County Court shall fix their salary.
All the salaries of deputies in the county house are fixed by the County Court, except as to Hughes and Long. I have insisted right along with the Commissioners, that the salaries of these two officers should be fixed by the County Court and I explained the law to Long from the bench on yesterday. Now please let me know a reason why the law should not be complied with throughout the court house? Long's bill for February, not signed by me, specifies:

C. J. Long, Boozie officer, \$150.00.

With equal propriety it could have been any sum above or below the sum asked. In other words the sheriff fixes the salary of these two deputies and not the County Court as the plain requirement of the law provides.

What does the Enterprise say my duty is in the premises?

H. E. CROSS, County Judge.

The two deputies of the sheriff's office, whose pay was held up by the refusal of County Judge H. E. Cross to approve their bills for services, will receive their warrants through the approval of the two commissioners, W. W. Harris and W. A. Proctor. The signature of Proctor, who is confined to his home by illness, was approved by Harris, who originally approved the bills, and the warrants will be issued Wednesday, along with the regular county payroll.

A split in the county court over the allowance of the bills dates from last July, following a row over the personnel of the sheriff's office. Since then Cross has refused to approve the claims of the two men, which have been passed over his head by the commissioners.

When Sheriff Proctor became ill at the opening of the term of the county court last week it was thought that no pay warrants for the deputies would be issued, as the clerk held that he could not draw the checks without the approval of the majority of the court.

DR. WM. KRASSIG

DENTIST

Specializes in

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10-11-12 Andress Bldg.

Oregon City, Ore.

OLD MUSTER
ROLL OF 1864
IS PRESERVED

Mrs. M. C. Toban, of this city, has in her possession a muster roll bearing the names of soldiers and sailors serving in the Civil War in 1864, that was found by Mrs. Toban when a girl employed in a large paper mill at Rialto, Butler county, Ohio. Mrs. Toban, then Mary C. Hoover, was busily engaged in selecting discarded papers to be used in the manufacture of paper, when her attention was drawn to the list on a large sheet of paper. She immediately inspected the sheet and found this to contain the names of men serving in Company G, Second Regiment of Kentucky Volunteers Infantry, army of the Confederate States of America. The captain was Edward F. Spears, and the colonel was James W. Moss. The date of the duplicate muster roll is from May 1st, 1864, to August 31st, 1864.

Among the names of those serving with Company G, and appearing on the roll are as follows: E. F. Spears, captain, entering the service July 24, 1861, serving three years, wounded and in hospital; First Lieutenant James A. Allen, July 19, 1861, served three years; Second Lieutenant John McGee, July 19, 1861, served three years, sick in hospital; Lieutenant James Harris, July 19, 1861, three years; First Sergeant E. Hewett, July 24, 1861, three years, killed at Resaca May 4, 1864; G. W. Hibler, second sergeant, taken prisoner at Jonesboro August 15, 1864; J. J. Conington, third sergeant, July 19, 1861, served three years; J. B. F. Fittigton, fourth sergeant, July 19, 1861, served three years, sick in hospital; J. T. Smith, fifth sergeant, July 19, 1861, killed May 28, 1864; J. M. Chiles, first corporal, July 19, 1861, killed May 28, 1864; John Mahon, second corporal, July 19, 1861, promoted to sergeant May 15, 1864, and wounded, and sent to hospital; James E. Patch, third corporal, July 4th, 1861, served three years; James A. Allen, July 19, 1861, served three years; John Barry, July 19, 1861, served three years; William Butler, August 2, 1861, served three years and killed at Dallas May 28th, 1864; J. D. Ballang, August 3rd, 1861, served three years; E. L. Cheeshire, July 7th, 1861, killed at Jonesboro September 1st, 1864; Senn Dotey, September 8, 1862, served three years; John C. Davis, July 19, 1861, served three years; W. L. Fitzpatrick, July 23, 1861, served three years, transferred from Captain Stark's Company "A" to Capt. Forth by order of Lieutenant Newton Enoff, 7th Cong. Dist.; A. Griffin, August 3rd, 1861, served three years; William Hite, July 4th, 1861, served three years, taken prisoner at Chickamauga; J. W. Hite, July 19, 1861, served three years; Frank Hurley, July 19, 1861, served three years, wounded at Dallas May 28th, 1864; G. W. Hinton, July 19, 1861, served three years, detailed as harness maker by Gen. Joe Johnston; J. F. Hogwood, Jan. 1, 1862, served three years, duty regimental ambulance teamster; J. A. Kirkpatrick, July 3rd, 1861, served three years; W. H. Lear, July 23, 1861, served three years; James McLaughlin, August 3, 1861, served three years, taken prisoner at Jonesboro August 31, 1864; G. W. McIntire, July 19, 1861, discharged from the service September 2, 1864; J. M. McGuire, July 19, 1861, served three years; Frank McKenney, August 2, 1861, served three years, wounded and taken to hospital; William McLean, July 19, 1861, served three years, hospital ward; J. H. Nash, September 1, 1861, in hospital; M. W. O'Brien, July 19, 1861, served three years, taken prisoner at Dallas May 28, 1864; E. T. Phillips, August 3, 1861, served three years; Mike Powers, August 3, 1861, served three years, taken prisoner at Jonesboro, September 1, 1864; Pat Punch, July 19, 1861, served three years, taken prisoner July 19, 1864; J. H. Priest, September 1, 1861, sick in hospital; L. H. Pardee, February 15, 1862, served three years, wounded and taken to hospital; W. J. Richardson, July 19, 1861, served three years; L. H. Shannon, July 19, 1861, served three years; William Shields, July 19, 1861, served three years, killed near Atlantic August 19, 1864, detached service; Henry Spears, October 21, 1861, served three years, pay department; Frank Richmond, May 1, 1862, August 16, 1861, served three years, detailed with Cobb's Battery; E. G. Wainwright, Nov. 1, 1862, served three years, detailed as harness maker by Gen. Joe Johnston; Oscar Watts, July 24, 1861, served three years, killed at Resaca May 14, 1864; Thomas York, August 3, 1861, taken prisoner at Jonesboro, August 31, 1864.

The old roll is badly worn, but the names are legible as they are written in ink. On the rear side is written in ink "Duplicate Muster Roll of Company G, Second Regiment of Kentucky Volunteers, from May first 1864, to the thirty-first day of August 1864."

Mrs. Nicholas Geymer of Portland spent Thursday at the Caldwell home. Mr. and Mrs. Clyde Singletary of Milwaukie were guests of Mr. and Mrs. Asael Taber, Tuesday.
R. H. Tabor and W. A. Henderson are building a fine chicken house for Thomas Grady.
Mrs. Thomas Hopkins is on the sick list, also Miss Gladys Caldwell.
Mr. and Mrs. Leslie Harlow of Milwaukie spent Sunday with Mr. and Mrs. Geo. Gardner.
L. E. and Robert Williams of Portland spent Sunday with A. W. Meyers.
Mr. and Mrs. Ray Hibbard spent Sunday in Portland guests of Mrs. Hibbard's mother.
Mrs. Victor Erickson who has been confined to her bed for six years is suffering with an attack of the la grippe her many friends are hoping for her recovery.
J. T. McCulloch who has been very ill with heart trouble is very much improved, we are glad to state.
The many Meldrum friends of Mrs. L. M. Underwood are sorry to hear of her death, February 28 in the Good Samaritan hospital. Mrs. Underwood leaves a husband and three boys the eldest being 12 years old. Since selling their home at Meldrum a few years ago they bought a home of 25 acres at Beaverton, Oregon.

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THIRTY YEARS
AGO TODAY

Taken from the Oregon City Enterprise March 4, 1892.

St. Paul's Entertainment—Last Tuesday evening St. Paul's Guild of the Episcopal church gave a dramatic entertainment at Pope's hall consisting of two parts—two one-act comedies. The first one was entitled "The Rough Diamond" and this was followed by "Wanted One Thousand Millionaires." Many of the prominent young people of this city took part. Between the acts Mrs. E. B. Charman rendered a vocal solo that pleased the audience so well that she responded to a hearty encore. The receipts of the entertainment were \$80.90. It was a credit to Mrs. F. L. Cochran, under whose direction the preparations were conducted and the participants of the program.

Annual School Meeting—The annual school meeting of the various school districts of Oregon will take place next Monday. In Oregon City the meeting will be held in Pope's hall. Oregon City must have a new school building, additions must be added to the corps of teachers and many improvements demanded by the growth of the city must be made. Better salaries ought to be paid the teachers here.

Ross Eaton Injured—Ross Eaton, little grandson of Mrs. Helena Morris, of Maeksburg, met with a painful accident last Saturday. He was running and stumbled over a stick of wood, falling in such a way as to fracture his right arm between the wrist and the elbow. Dr. Goucher was called and reduced the fracture and the child is doing well. The little fellow endured the pain manfully.

Died—At the residence of his sister, Mrs. J. F. Hemingway, in Spokane, Wash., February 26, 1892, C. Bert Pope, aged 22 years and six days. Bert Pope was born in this city. When seven years of age he went to Portland to attend the schools, and he left that city about five years ago, going first to Palouse City and later to Spokane. He was bank messenger and in Spokane was clerk in the Bank of Spokane Falls, and was ill but eight days before his death.

The remains were brought here on Monday and the funeral was held Tuesday afternoon at the residence of Mr. and Mrs. T. A. Pope, where Mrs. H. B. Pope, mother of the deceased, lived. The services, which were largely attended, were conducted by Rev. Alfred Kummer, Portland, pastor of the M. E. church. The pallbearers were chosen from his former schoolmates, and were Robert Catlin, Luther Steel, George Myers, Guy Willis, Will Homan and Bert Farrell.
Mr. and Mrs. A. M. Cannon, Mr. and Mrs. Hemingway, of Spokane attended the funeral. Among those present from Portland were Judge and Miss Caples, Captain Pease, Mr. and Mrs. George Steel, Mr. and Mrs. Chattin, Mrs. T. A. Sutherland, Mrs. A. L. Pease, Captain Pope, Mrs. J. D. Biles.
The young man was of exemplary habits and had a large circle of friends.

CHAMPION FATHER FOUND

BIRMINGHAM, Ala., March 5.—The champion father of Alabama, and perhaps of the nation, has been found here.

He is the father of 36 children at 61 years of age and the stork is again flapping its wings around his little home.

Charlie Sobb is his name, and he and a part of his enormous family live in a little combination house and store.
There he and his third wife, with their 12 children live in noisy, happy content. The other 24 children by two former wives are not with them.

FIVE INJURED IN CRASH

PORTLAND, March 3.—Five persons were injured and two other automobile occupants were endangered when an outboard Woodstock street-car on the Hawthorne bridge, crashed into the rear of a stalled automobile at 7 o'clock Thursday evening. The streetcar, which witnesses said was going 25 miles an hour, telescoped the rear of the machine, while another automobile directly in front of the crushed car was driven over 50 feet by the impact.

Classified Ads

FOR SALE: 350 new and second hand sacks for sale. A. R. Daue. Phone 16F22, Clackamas.

Inspected "New Oregon" strawberry plants \$4.50 per thousand. Walter Nichols, Canby, Ore.

LEGAL NOTICES

NOTICE TO CREDITORS

Notice is hereby given that the undersigned has been duly appointed administratrix of the estate of Charles McGourty, deceased, and any and all persons having claims against the said estate are hereby required to present said claims, duly verified as by law required, at the office of my attorney John Olsen, 413 Chamber of Commerce Building, Portland, Oregon, or at the Oregon City Enterprise, Oregon, within six months from the date of this notice.
Dated February 24, 1922.
Date of first publication March 3, 1922.
Date of last publication March 31, 1922.

CECILIA MCGOURTY,
Administratrix of the estate of
Charles McGourty, deceased.
JOHN OLSEN,
Attorney.

NOTICE TO CREDITORS

In the Matter of the Estate of Lucien M. Davidson, deceased. Notice is hereby given that the undersigned has been duly appointed by the County Court of Clackamas County, Oregon, administrator of the estate of Lucien M. Davidson, deceased, and any and all persons having claims against said estate are hereby required to present said claims, duly verified according to law, at the office of my attorney, C. H. Dye, corner of 8th & Main Sts.,

Oregon City, Oregon, within six months from the date of the first publication of this notice. Dated March 3, 1922.

FRANK E. DAVIDSON,
Administrator as aforesaid.
C. H. DYE,
Attorney for Estate.
Published first time March 3rd, 1922.

SUMMONS

No. 18567
In the Circuit Court of the State of Oregon for Clackamas County. Department No.—
Minnie A. Sellers, Plaintiff,
vs.
Floyd D. Sellers, Defendant.

To Floyd D. Sellers, the defendant above named: In the name of the State of Oregon, you are hereby required to appear and answer the complaint filed against you in the above entitled cause and court, within six weeks from the date of the first publication of this summons, to-wit: Within six weeks from Friday, March 3rd, 1922, and if you fail to so answer or appear herein for want thereof, the plaintiff will take a decree against you, forever dissolving the marriage contract now existing between you and plaintiff and granting plaintiff such other relief as may be equitable.

This summons is published for six consecutive weeks in the Oregon City Enterprise, a newspaper of general circulation, printed and published at Oregon City, Clackamas County, Oregon, the date of the first publication thereof being Friday, March 3rd, 1922, and the date of the last publication thereof, being Friday April 14th, 1922, all done in accordance with the order of the Honorable James U. Campbell, Judge of the above entitled Court, said order was made and entered of record March 31st, 1922.

WM. G. MARTIN,
CAREY F. MARTIN,
Attorneys for Plaintiff.
Postoffice Address: 413 Masonic Temple Building, Salem, Oregon.

NOTICE OF FINAL ACCOUNT

Notice is hereby given that the undersigned, as administrator of the estate of William Murray, deceased has filed his final account in the office of the County Clerk of Clackamas County, Oregon, and that Monday, the 3rd day of April, 1922, at the hour of 10 a. m. in the forenoon or said day, in the County Court Room of said Court has been appointed by said Court as the time and place for the hearing of objections thereto and the settlement thereof.

Dated and first published March 10, 1922.

Last publication April 7th, 1922.

FRED B. MURRAY,
Administrator of the estate of William Murray, deceased.

WM. HAMMOND,
Attorney for Administrator.

SUMMONS

In the Circuit Court of the State of Oregon, for the County of Clackamas.
vs.
H. F. Way, Plaintiff,
vs.
Grace A. Way, Defendant.

In the Name of the State of Oregon, you are hereby notified and required to appear and answer the complaint of plaintiff in the above entitled Court and cause on or before Saturday, the first day of April, 1922, and if you do not so appear and answer, the plaintiff will apply to the Court for the relief prayed for in the complaint, to-wit:
For a decree dissolving the marriage contract heretofore and now existing between plaintiff and defendant, and decreeing that defendant have the temporary care, custody and control of the minor children, Rowena A. Way, Herbert F. Way and Greville F. Way, subject, however, to the further order of this court, and that plaintiff and defendant shall become and be tenants in common in the ownership and title of Tract Numbered Sixteen (16) Bland Acres, Clackamas County, Oregon, and that plaintiff is the owner of Lot 7, Block 66, Oregon City, Oregon, subject to the payment to defendant of the sum of \$50.00 and for such other and further relief as to the Court shall seem meet and equitable in the premises.

This summons is published by order of the Honorable J. U. Campbell, Judge of the Fifth Judicial District of Oregon, which order was made February 16th, 1922, directing that the summons be published in the Oregon City Enterprise, once a week for six consecutive weeks, the date of the first publication, February 17th, 1922, and the date of the last publication, March 31st, 1922.

JOS. E. HEDGES,
Attorney for Plaintiff.

SUMMONS

In the Circuit Court of the State of Oregon for Clackamas County.
Olive Marsden, Plaintiff
vs.
William Marsden, Defendant.

In the Name of the State of Oregon, you are hereby required to appear and answer the complaint filed against you in the above entitled suit on or before the expiration six weeks from the date of the first publication of this summons, which date of expiration is fixed by order of the above entitled Court as March 31st, 1922; if you so fail to appear and answer plaintiff will apply to the Court for the relief prayed for in her complaint, to-wit: for a decree or absolute divorce from defendant, with restoration of plaintiff's former name, and such other and further relief as to the Court may seem just and equitable.

This summons is published by order of Hon. J. U. Campbell, Judge of the above entitled Court.
The order is dated February 14, 1922.
Date of first publication February 17, 1922.
Date of last publication March 31, 1922.

GEO. L. MASTEN,
Attorney for Plaintiff.

Address 310 Panama Bldg., Portland, Oregon.

SUMMONS

In the Circuit Court of the State of Oregon, for the County of Clackamas.
Mabel Susan Clarkson, Plaintiff,
vs.
Robert Clarkson, Defendant.

To Robert Clarkson, defendant: In the Name of the State of Oregon, you are hereby required to appear and answer the complaint of plaintiff now on file herein within six weeks from the date of the first publication hereof, and on or before the 31st day of March, 1922, and in the event that you fail, neglect or refuse to so appear and answer, default will be taken against you and a decree will be entered herein against you, as prayed for in plaintiff's complaint, dissolving the marriage contract heretofore and now existing between plaintiff and yourself and granting to plaintiff the sole and exclusive custody and control of Milton Robert Clarkson, the minor child of plaintiff and yourself, and for such other and further relief as to the Court shall seem just and equitable.

This summons is served upon you by publication thereof in the Oregon City Enterprise, a newspaper of general circulation, printed and published at Oregon City, Clackamas County, Oregon, the date of the first publication thereof, being Friday, March 3rd, 1922, and the date of the last publication thereof, being Friday, April 14th, 1922.

M. Phillips, T. Hlas and L. T. Trepcov, Defendants.
To M. Phillips, T. Hlas, and L. T. Trepcov, the above named defendants: In the Name of the State of Oregon:

SUMMONS FOR PUBLICATION IN FORECLOSURE OF TAX LIEN

In the Circuit Court of the State of Oregon for the County of Clackamas John Peterson, Plaintiff,
vs.
M. Phillips, T. Hlas and L. T. Trepcov, Defendants.

To M. Phillips, T. Hlas, and L. T. Trepcov, the above named defendants: In the Name of the State of Oregon:

You are hereby notified that John Peterson the holder of Certificate of Delinquency numbered 2194 issued on the 15th day of December 1920, by the Tax Collector of the County of Clackamas, State of Oregon, for the amount of Seven & 87-100 Dollars, the same being the amount then due and delinquent for taxes on the year 1916 together with penalty, interest and assessed to you, of which you are the owner as appears on record, situated in said County and State, and particularly bounded and described as follows, to-wit:

North 25 acres of the N. 1/2 of S. W. 1/4 of Sec. 28. Tp. 1, R. 5 E. W. M.
You are further notified that said John Peterson has paid taxes on said premises for prior or subsequent years with the rate of interest on said amounts as follows:
1917 year's tax—paid Dec. 15, 1920; tax receipt number 19306, amount, \$5.58; rate of interest 12%; total, \$6.30.
1918 year's tax—paid Dec. 15, 1920; tax receipt number, 19307; amount \$5.46; rate of interest 12%; total, \$6.17.
1919 year's tax—paid Dec. 15, 1920; tax receipt number, 18528; amount, \$7.90; rate of interest 12%; total, \$8.92.
1920 year's tax—paid, first 1/2, June 1, 1921; tax receipt number, 11963, amount \$4.36; rate of interest 12%; total \$4.92.
1920 year's tax—Second 1/2, Oct. 5, 1921; tax receipt number, 16425; amount, \$4.28; rate of interest 12%; total \$4.84.

Said M. Phillips, T. Hlas, and L. T. Trepcov, as the owners of the legal title of the above described property as the same appears on record are hereby further notified that said John Peterson will apply to the Circuit Court of the County and State aforesaid for a decree foreclosing the lien against the property above described and mentioned in said certificate. And you are hereby summoned to appear within sixty days after the first publication of this summons exclusive of the day of said first publication, and defend this action or pay the amount due as above shown together with costs and accrued interest, and in case of your failure to do so, a decree will be rendered foreclosing the lien of said taxes and costs against the land and premises above named.

This summons is published by order of the Honorable J. U. Campbell, Judge of the Circuit Court for the County of Clackamas, and said order was made and dated the 8th day of February, 1922, and the date of the first publication of this summons is the 10th day of February 1922.

All process and papers in this proceeding may be served upon the undersigned residing within the State of Oregon, at the address hereafter mentioned.

WM. A. WILLIAMS,
Attorney for the Plaintiff.
Address 822 Chamber of Commerce Bldg., Portland, Oregon.

DEPARTMENT OF THE INTERIOR,

U. S. Land Office at Portland, Ore., Jan. 31, 1922.

Notice is hereby given that John G. Gentry of Oregon City, Ore., who, on August 16th, 1918, made Homestead Entry, No. 06139, for Lots 1 and 2, Section 3, Township 3 S., Range 2 E., W. Meridian, has filed notice of intention to make three-year proof, to establish claim to the land above described, before the Register & Receiver of the U. S. Land Office, at Portland, Ore., on the 29th day of March, 1922.

Claimant names as witnesses: William Braatz, of Oregon City, Ore.; R. J. John Frazer, of Oregon City, Ore.; R. J. John Ness, of Oregon City, Ore.; R. J. Victor Neal, of Portland, Ore.; 20th and Quimby streets.

ALEXANDER SWEET,
Act 6-9-16 Register.

SUMMONS

In the Circuit Court of the State of Oregon for Clackamas County.
Olive Marsden, Plaintiff
vs.
William Marsden, Defendant.

In the Name of the State of Oregon, you are hereby required to appear and answer the complaint filed against you in the above entitled suit on or before the expiration six weeks from the date of the first publication of this summons, which date of expiration is fixed by order of the above entitled Court as March 31st, 1922; if you so fail to appear and answer plaintiff will apply to the Court for the relief prayed for in her complaint, to-wit: for a decree or absolute divorce from defendant, with restoration of plaintiff's former name, and such other and further relief as to the Court may seem just and equitable.

This summons is published by order of Hon. J. U. Campbell, Judge of the above entitled Court.
The order is dated February 14, 1922.
Date of first publication February 17, 1922.
Date of last publication March 31, 1922.

GEO. L. MASTEN,
Attorney for Plaintiff.

Address 310 Panama Bldg., Portland, Oregon.

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vs.
Robert Clarkson, Defendant.

To Robert Clarkson, defendant: In the Name of the State of Oregon, you are hereby required to appear and answer the complaint of plaintiff now on file herein within six weeks from the date of the first publication hereof, and on or before the 31st day of March, 1922, and in the event that you fail, neglect or refuse to so appear and answer, default will be taken against you and a decree will be entered herein against you, as prayed for in plaintiff's complaint, dissolving the marriage contract heretofore and now existing between plaintiff and yourself and granting to plaintiff the sole and exclusive custody and control of Milton